



on continued grants from the ICC and advances/contract revenue from ACE, precisely the entities whose payments and performance are now in dispute. In the same filing, USA Cricket disclosed that 48 per cent of its 2023 contributions came from the ICC and 12 per cent from ACE, underscoring how concentrated that lifeline is.

Conflict of interest concerns

Internal emails also reveal that Paraag Marathe, the USA Cricket Chairman between 2018 and 2022, held a consulting agreement with *Times Internet (UK)* — a key ACE backer and *Willow TV* (the only 24x7 live cricket channel in the USA and the official broadcaster for MLC) owner — while the term sheet was being finalised in 2019. He reportedly disclosed it only in late 2021.

The letter from the USA Cricket counsel states: “Under this agreement, Mr. Marathe is to provide general consulting services to *Times Internet (UK)* Limited related to (1) sponsorship opportunities in the mainstream U.S. sports advertising space, (2) growing *Times Internet (UK)* Limited’s

business, and (3) media rights and distribution opportunities for *Willow TV*. Although the financial terms of this agreement and the agreement with ACE are redacted, Mr. Marathe informs me that the financial payment from the *Times Internet (UK)* Limited agreement is approximately 5 per cent of the payments owed under the ACE agreement.”

Marathe is no minor player in the U.S. sports world. He serves as President of 49ers Enterprises and Executive Vice President of Football Operations for the San Francisco 49ers, and chairs Leeds United in England.

In a communication between USA Cricket and its attorney, which this publication has seen, legal counsel warned in 2021 that while the arrangement might not technically breach USA Cricket policy, it created a strong perception problem and urged Marathe to recuse himself from decisions involving *Times Internet (UK)*.

In a legal advisory to USA Cricket, board counsel wrote: “Although I don’t believe that the agreement causes Mr. Marathe to have a direct conflict of interest under USA Cricket’s Conflict of Interest Policy, there is still a need under the policy to avoid the perception of, or potential for, a conflict.

“Therefore... my advice would be: Mr. Marathe should excuse himself from any formal or informal discussions related to the relationship between USA Cricket and *Times Internet (UK)* Limited and/or *Willow TV*, and should take no part in any discussion or vote... If there is any question or dispute... the CEO of USA Cricket should determine whether Mr. Marathe should be excused...”

The Term Sheet, drawn up when Marathe was Chairman of USA Cricket, vests ACE with extraordinary power:

Section 13 (Audit rights): USAC can audit ACE only once annually via a mutually agreed third party — a clause so restrictive that meaningful financial oversight becomes impractical.

Sections 3, 5, 24 (Infrastructure): ACE can assign infrastructure obligations to affiliates without new consent.

Sections 4-9 (League decisions): All commercial, format, and expansion decisions rest with ACE, not USAC.

Section 22 (Termination): ACE faces no penalty for withholding payments while disputes are unresolved. USAC’s termination rights require long “cure” windows, delaying enforcement.

This arrangement flies in the face of standard U.S. sports governance, where the National Governing Body (NGB), for example, USA Basketball, maintains independence from league operators like the NBA. It is a level of authority rarely seen in U.S. sports partnerships. While this model helped fast-track professional cricket in the U.S., it also left USA Cricket heavily reliant on one private partner, with limited audit rights and few enforcement mechanisms if disputes arise.

That dependency has amplified the pressure on USA Cricket to strengthen its governance framework. Under the revised constitution, updated in line with USOPC guidelines, the board has expanded from 10 to 12 directors, with two additional seats allocated to player representatives — increasing their total to four.

The last elections were held in a staggered manner — independent directors in February 2024, player directors as far back as August 2022, and membership directors in July 2023.

As per the official USA Cricket website, the board currently has 10 seats, with three vacant. Both player directors — Nadia T. Gruny and Srini Salver — have terms that ended in 2024, while chairman Venu Pisike’s term runs until December 31, 2025.

To be part of the Olympic system, USA Cricket must also meet the U.S. Olympic and Paralympic Committee (USOPC) standards: independent governance, enforceable conflict of interest rules, financial transparency, and a board in which “athlete representatives will equal at least